BRENDAN NGEHSI NEWANFORBI
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Petitioner, in propria persona

SUPERIOR COURT OF CALIFORNIA
COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner,
v.
CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; and DOES 1–10, Respondents.

Case No. 26CV191136 | Department 25
Assigned to: Hon. Jenna M. Whitman

NOTICE OF MOTION AND MOTION FOR JUDGMENT ON FIRST CAUSE OF ACTION AND PEREMPTORY WRIT OF MANDATE; ALTERNATIVE REQUEST TO SET DISPUTED FACTS FOR TRIAL

Code of Civil Procedure sections 1085, 1086, 1088.5, 1090 and 1094; Penal Code section 679.10

TO RESPONDENTS AND THEIR ATTORNEYS OF RECORD:

On [CONFIRM MERITS HEARING DATE], at [TIME], in Department 25 of the Superior Court of California, County of Alameda, Rene C. Davidson Courthouse, 1225 Fallon Street, Oakland, California 94612, Petitioner Brendan Ngehsi Newanforbi will move for judgment on the First Cause of Action and issuance of a peremptory writ concerning Captain G. Serrato's April 20, 2026 denial of Petitioner's April 9, 2026 request for Form I-918 Supplement B certification.

Petitioner requests the following relief, in the order stated:

(a) Upon a finding that the denial reflects a material abuse of discretion or an erroneous application of Penal Code section 679.10, a judgment directing CHP and its authorized certifying official to vacate the denial and reconsider the request consistently with the Court's findings and the governing statute within 30 days after service of the writ, with a return within 45 days;

(b) Alternatively, an order directing completion, signature and delivery of the certification within 30 days after service, but only if the Court determines that the admitted evidence establishes all applicable certification predicates and that certification is the only reasonable, lawful disposition; or

(c) If material facts cannot properly be resolved on the noticed motion, an order setting those facts for trial, with a pretrial evidentiary schedule and a procedure for presenting the original recordings and testimony. Petitioner requests a court trial, subject to the Court's authority under Code of Civil Procedure section 1090.

The motion concerns Count One only. It does not seek reconsideration of the dismissal of Counts Two and Three, independent declaratory relief, damages, a discovery-compulsion order, or an order granting immigration status.

The motion is based on this notice and memorandum; the operative verified petition and specifically cited exhibits; the August 29, 2026 demurrer order; the concurrently served declaration and authenticated exhibits; properly admitted original recordings; and evidence and argument the Court receives. Proposed judgment and writ are submitted separately. A reservation alone is not represented as an order setting the case for a merits determination.

Dated: _____

BRENDAN NGEHSI NEWANFORBI
Petitioner, in propria persona
Signature: _____

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MEMORANDUM OF POINTS AND AUTHORITIES

The surviving claim challenges the substance of the certification decision

Petitioner seeks review of a specific administrative decision, not a second adjudication of the dismissed reason-giving claim. CHP denied his request because it concluded that the underlying incident involved no qualifying criminal activity. The surviving question is whether that conclusion was a lawful, reasonable exercise of the certification authority on the facts of this incident. (Pet., Ex. 1, denial letter; Order Sustaining Demurrer in Part, Aug. 29, 2026, pp. 2–4.)

The Court has already identified the factual issue that matters: whether evidence credited at trial would establish that the officers' asserted signs of intoxication were untrue, that probable cause was lacking, and that the certification denial consequently constituted an abuse of discretion. The Court did not decide those facts on demurrer. Petitioner now requests their determination on admissible evidence, not their acceptance merely because they were pleaded. (Aug. 29 Order, pp. 3–4.)

The strongest directly testable discrepancy concerns the walk-and-turn. CHP's report attributes its nonperformance to Petitioner's choice and difficulty; Petitioner's timestamped transcript instead records his willingness to attempt it and the officers' decision not to administer it on uneven freeway terrain. The report then invokes poor field-test performance as an arrest factor. Petitioner asks the Court to compare the original recording, the report, and his testimony, and to assess the materiality of that discrepancy together with every remaining asserted basis for custody. (Pet., Ex. 5, transcript at 01:10:14–01:10:30; CHP Form 202, AGO 000031–000032; Newanforbi Decl., ¶¶ 3–5.)

Petitioner does not contend that one inaccurate description automatically proves every element of a qualifying offense. Nor does he seek an automatic remand because the denial was brief. Relief depends on a finding of material error in the qualifying-activity determination; direct certification additionally requires a finding that no lawful alternative remains.

The certification statute supplies an enforceable but conditional duty

CHP is a certifying entity, and section 679.10 expressly lists unlawful criminal restraint and false imprisonment as qualifying criminal activity. Subdivision (d) also covers offenses with substantially similar nature and elements. (Pen. Code, § 679.10, subds. (a), (c)(18)–(19), (d).) [1]

Upon request, an authorized official "shall certify victim helpfulness" when the person was a victim of qualifying criminal activity and "has been helpful, is being helpful, or is likely to be helpful" in its detection, investigation or prosecution. The helpfulness presumption is rebuttable and does not dispense with the qualifying-activity requirement. (Id., subds. (g)(1), (h).) [2]

An open investigation, filed charges, apprehension, prosecution and conviction are not prerequisites to certification. The statute also prohibits denial for specified reasons, including the victim's criminal history and cooperation or refusal to cooperate in a separate case. Petitioner does not assume that Serrato relied on any prohibited factor merely because the statute prohibits it. (Id., subd. (k)(1), (3)(A), (H).) [3]

Traditional mandate can compel an official to exercise authority under the correct law and can correct an administrative abuse of discretion; ordinarily it cannot dictate a particular discretionary outcome. (Common Cause v. Board of Supervisors (1989) 49 Cal.3d 432, 442; Saleeby v. State Bar (1985) 39 Cal.3d 547, 560–562.) [4] [5]

Where a statute leaves discretion, Petitioner must show action that was arbitrary, beyond the bounds of reason, or contrary to governing legal standards. A specific outcome may be

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[1]Penal Code § 679.10. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=679.10.
[2]Penal Code § 679.10. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=679.10.
[3]Penal Code § 679.10. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=679.10.
[4]Common Cause (1989) 49 Cal.3d 432. https://law.justia.com/cases/california/supreme-court/3d/49/432.html
[5]Saleeby (1985) 39 Cal.3d 547. https://law.justia.com/cases/california/supreme-court/3d/39/547.html

compelled where only one choice is reasonable. (California Correctional Supervisors Organization, Inc. v. Department of Corrections (2002) 96 Cal.App.4th 824, 827.) [6]

Petitioner is the person whose certification request was denied and seeks performance of that statutory duty. Damages for the arrest would not supply the requested certification or correct CHP's decision. The requested writ therefore addresses his own beneficial interest and the absence of an adequate substitute remedy. (Code Civ. Proc., §§ 1085–1086.)

The restraint theory requires proof of unlawful custody, not merely an unsuccessful prosecution

Penal Code section 236 defines false imprisonment as "the unlawful violation of the personal liberty of another." Petitioner's principal theory invokes that expressly listed offense, not a claim that every contested police encounter or every civil-rights violation is automatically qualifying criminal activity. [7] [8]

The report affirmatively documents handcuffing, compulsory transport and jail booking. Petitioner's declaration addresses that restraint and his lack of consent. The disputed question is lawful authority, together with the remaining criminal elements necessary to the asserted offense. Petitioner does not ask the Court to infer all those elements from a report discrepancy alone. (AGO 000029, 000033; Newanforbi Decl., ¶¶ 5–6.)

Probable cause turns on the facts known at arrest and what they would persuade a person of reasonable caution to believe, not on proof beyond a reasonable doubt or the eventual charging outcome. (People v. Thompson (2006) 38 Cal.4th 811, 818.) [9]

CHP's totality must be confronted: the sleeping driver, freeway shoulder, acknowledged prior driving, empty alcoholic-beverage can, reported odor, red and watery eyes, slurred speech, HGN

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[6] California Correctional Supervisors Organization (2002) 96 Cal.App.4th 824. https://law.justia.com/cases/california/court-of-appeal/4th/96/824.html

[7] Penal Code § 236. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=236.

[8] Penal Code § 679.10. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=679.10.

[9] Thompson (2006) 38 Cal.4th 811. https://law.justia.com/cases/california/supreme-court/2006/s130174.html

observations, Romberg estimate, field-test conduct and PAS refusal. Petitioner disputes material descriptions, but does not omit the unfavorable evidence or claim the report contains no incriminating observations. (AGO 000030–000032; Pet., Ex. 5, prearrest transcript; Aug. 29 Order, p. 3.)

The walk-and-turn discrepancy is specific and capable of objective resolution

The report states: “Walk and Turn: Newanforbi chose not to perform this test and related it was difficult.” Its arrest rationale separately includes “Newanforbi's poor performance on the FST's.” (AGO 000031, lines 18–19; AGO 000032, lines 21–29.)

The transcript records Petitioner's response, “I mean I think we can do that,” at 01:10:23. At 01:10:27 it attributes to Melano: “Yeah, it's on the side of the freeway and it's like uneven ground. I wouldn't do that one.” At 01:10:30 Meza-Gonzales responds, “Alright then.” These are quotations from Petitioner's transcript, offered subject to comparison with the authenticated original recording, not a representation that this memorandum independently proves the recording's contents. (Pet., Ex. 5, transcript, printed p. 9; Newanforbi Decl., ¶¶ 3–5.)

If credited, that exchange defeats an adverse inference that this particular test was omitted exclusively because Petitioner refused or could not perform it. It also requires examination of the reliability and weight of the report's broader field-test rationale. The point is limited to the walk-and-turn: the earlier one-leg-stand exchange is different, and Petitioner does not recast it as an officer-cancelled walk-and-turn. (AGO 000031–000032; Pet., Ex. 5, transcript at 01:08:58–01:10:30, printed pp. 8–9.)

The recording can test speech and conduct but cannot eliminate unrecorded sensory observations

Petitioner asks the Court to hear the prearrest conversation and determine whether it supports the report's descriptions of speech, responsiveness and orientation. His fatigue account and description of the encounter are offered as testimony, not as expert proof that every apparent symptom had an innocent cause. (AGO 000030, 000032; Newanforbi Decl., ¶¶ 2–4.)

Audio cannot establish whether an officer actually smelled alcohol. An officer's failure to narrate odor does not prove its absence, and identification of urine in one cup would not exclude a separate odor of alcohol. Likewise, a transcript cannot disprove visual HGN findings. Petitioner does not claim a favorable Romberg result; the report records an estimate of 30 seconds with 43 seconds elapsed. Those observations must be evaluated, not silently removed. (AGO 000030–000032.)

Espinoza v. Shiomoto (2017) 10 Cal.App.5th 85, 101–103 is important adverse authority: coherent speech did not defeat probable cause where the credited totality included other intoxication observations and refusals. Petitioner therefore relies on the specific reliability disputes and the complete record, not on a rule that coherent answers or the absence of bad driving necessarily defeats probable cause. [10]

PAS refusal is not a substitute for evaluating the full prearrest record

The transcript attributes to Meza-Gonzales the advice that Petitioner was not required to take the roadside PAS; it then records refusal at 01:11:15 and the direction to turn around for handcuffing at 01:11:16. That sequence identifies what preceded arrest. It does not, by timing alone, establish the absence of probable cause or make the officer's subjective decision controlling. (Pet., Ex. 5, transcript at 01:10:33–01:11:33, printed p. 10.)

Petitioner does not seek categorical exclusion of test refusal from the reasonable-cause analysis; refusal and other conduct may be considered with the remaining circumstances. The actual question is whether the reliable totality, including the correctly characterized test sequence, supported compulsory custody. (Espinoza, supra, 10 Cal.App.5th at pp. 101–103.) [11]

Unobserved driving and alternative arrest grounds must be addressed, not assumed away

The absence of observed driving is not dispositive. Vehicle Code section 40300.5 permits a warrantless arrest for prior DUI upon reasonable cause plus a specified circumstance, including

[10]Espinoza (2017) 10 Cal.App.5th 85. https://law.justia.com/cases/california/court-of-appeal/2017/e064252a.html
[11]Espinoza (2017) 10 Cal.App.5th 85. https://law.justia.com/cases/california/court-of-appeal/2017/e064252a.html

roadway obstruction, risk of escape, injury or property damage, or destruction or concealment of evidence. Petitioner asks the Court to identify any applicable circumstance on the actual evidence, rather than equate a shoulder stop with roadway obstruction or ignore the other statutory alternatives. [12]

Nor would defeating the stated DUI rationale alone necessarily establish unlawful custody. People v. Wolterman (1992) 11 Cal.App.4th Supp. 15, 18–21 upheld an arrest on objective public-intoxication grounds despite the officer's stated DUI ground; its record included partial roadway obstruction and a subject who wandered into traffic. Its lesson is that objectively supported alternative authority matters, not that everyone sleeping beside a freeway is necessarily subject to arrest. [13]

Petitioner therefore requests consideration of any claimed public-intoxication basis, including the evidence of inability to care for personal or others' safety, or obstruction of a public way. He does not treat a vehicle's shoulder location, an empty can, or a later release certificate as resolving that inquiry. (Wolterman, supra, 11 Cal.App.4th Supp. at pp. 18–20.) [14]

Later records must be used for what they establish

The laboratory report records ethanol of 0.073 ± 0.004 grams percent in the submitted sample. The arrest report records collection at 02:38, after arrest at approximately 01:12. Petitioner offers no retrograde extrapolation and does not contend that the later concentration disproves impairment under Vehicle Code section 23152(a). (AGO 000033–000034.)

The later blood warrant and laboratory results were not facts available at the initial arrest and do not themselves supply its contemporaneous factual basis. Likewise, a section 851.6 certificate describing the event as a detention is not a judicial finding that probable cause was absent; the

[12]Vehicle Code § 40300.5. https://law.justia.com/codes/california/code-veh/division-17/chapter-2/article-1/section-40300-5/
[13]Wolterman (1992) 11 Cal.App.4th Supp. 15. https://law.justia.com/cases/california/court-of-appeal/4th/11/supp15.html
[14]Wolterman (1992) 11 Cal.App.4th Supp. 15. https://law.justia.com/cases/california/court-of-appeal/4th/11/supp15.html

statute permits such a certificate where no accusatory pleading is filed. (Thompson, supra, 38 Cal.4th at p. 818; Pen. Code, § 851.6, subds. (a)–(b).) [15] [16]

The CAD establishes a chronology of inquiries and custody entries, not an independently proven parole hold. The activity sheets document the officers' shift entries and references to refusal and a blood warrant; they do not independently decide whether the arrest was lawful. Petitioner does not ask the Court to infer an unauthorized hold or an altered record merely from those documents. (CAD, AGO 000022–000024; CHP 415 sheets, AGO 000054, 000061.)

The Court must connect any proven factual error to the certification denial

The challenged act remains Serrato's April 20 decision. The denial states that a review found no qualifying or substantially similar activity; it does not expressly identify failure to cooperate as its ground. The claim consequently turns on the reasonableness and legality of the qualifying-activity conclusion, not on a demand for a longer letter. (Pet., Ex. 1; Aug. 29 Order, pp. 2, 4.)

Petitioner asks the Court to find, on the admitted evidence, that the material report discrepancies and the credited account of the encounter undermine the asserted lawful-custody basis sufficiently to establish an abuse in the denial. He recognizes that a correctable error must be material: if the remaining reliable totality supplies lawful authority and reasonably supports the no-qualifying-activity conclusion, the walk-and-turn discrepancy alone does not entitle him to a writ.

The October 23 production establishes what was delivered in that production, not that no additional certification review occurred in April. The privilege log has 15 entries, including March correspondence, May memoranda and interviews, an August letter and a CLETS return. A May 9 video-review memorandum is not proof that no earlier review occurred; the withheld contents are not evidence before the Court. No adverse finding is requested merely because a

[15] Thompson (2006) 38 Cal.4th 811. https://law.justia.com/cases/california/supreme-court/2006/s130174.html

[16] Penal Code § 851.6. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=851.6.

privilege was asserted. (Production email and service declaration, Oct. 23, 2026; Privilege Log, pp. 2–3, entries 1–15.)

Petitioner seeks no discovery-compulsion or automatic in-camera-review order through this motion. Any remaining discovery dispute must be presented through an authorized, separately noticed procedure respecting the asserted privileges and applicable protections. The merits presentation should identify the nonprivileged materials supporting CHP's position, without presuming the contents of withheld material.

Helpfulness matters within Count One only after qualifying activity is established

If Petitioner establishes victim status, his reports, supplied incident information and willingness to provide reasonably requested assistance bear on helpfulness. Subdivision (h) supplies a rebuttable presumption where the victim has not refused or failed to supply reasonably requested information and assistance. This is an element of the conditional certification duty, not an attempt to reinstate dismissed Count Three. (Pen. Code, § 679.10, subds. (g)(1), (h); Newanforbi Decl., ¶¶ 7–8.) [17]

The roadside PAS investigation concerned suspected DUI by Petitioner; the certification request concerns alleged unlawful restraint by officers. Petitioner does not claim that refusal is irrelevant to whether that arrest was lawful. He contends it is not, without more, a refusal to assist investigation of the alleged qualifying restraint, and that cooperation in a separate case is a prohibited certification-denial ground. (Id., subd. (k)(3)(H).) [18]

Disputed facts warrant an appropriate trial procedure, not assumed entitlement to judgment

This case challenges an individual, informal certification decision. Western States Petroleum Assn. v. Superior Court (1995) 9 Cal.4th 559, 576 expressly preserves admission of extra-record evidence in traditional mandate challenging ministerial or informal administrative action where

[17]Penal Code § 679.10. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=679.10.
[18]Penal Code § 679.10. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=679.10.

facts are disputed. Petitioner invokes that limited rule, subject to authentication, relevance, hearsay and other ordinary evidentiary requirements; he does not seek unrestricted supplementation of a quasi-legislative record. [19]

Code of Civil Procedure section 1094 permits determination by noticed motion when the specified statutory conditions are met, including the absence of a triable fact issue or reliance solely on an administrative record. Section 1090 gives the Court discretion to submit an essential factual issue to a jury. Petitioner therefore requests a trial-setting order if the merits require contested credibility findings unsuitable for resolution on this motion, rather than treating every factual conflict as automatically resolved in his favor. [20] [21]

The necessary issues are focused: what the recording actually depicts; the accuracy and materiality of the disputed report descriptions; the full objective basis for custody, including supported alternatives; the factual basis of the certification denial to the extent properly proved; and, if qualifying activity is established, helpfulness. Petitioner requests presentation of the original recordings, his testimony and appropriately noticed or subpoenaed witnesses, with a fair opportunity for both sides to address the evidence.

Relief must follow the findings actually made

Petitioner requests vacatur and remand if the Court finds a material factual abuse or legal error in the qualifying-activity determination. A remand would require a new decision applying the correct statute and the Court's actual findings, without commanding an unsupported result. (Common Cause, supra, 49 Cal.3d at p. 442; Saleeby, supra, 39 Cal.3d at p. 562.) [22] [23]

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[19] Western States (1995) 9 Cal.4th 559.
https://law.justia.com/cases/california/supreme-court/4th/9/559.html
[20] Code of Civil Procedure § 1094.
https://law.justia.com/codes/california/code-ccp/part-3/title-1/chapter-2/section-1094/
[21] Code of Civil Procedure § 1090.
https://law.justia.com/codes/california/code-ccp/part-3/title-1/chapter-2/section-1090/
[22] Common Cause (1989) 49 Cal.3d 432.
https://law.justia.com/cases/california/supreme-court/3d/49/432.html
[23] Saleeby (1985) 39 Cal.3d 547.
https://law.justia.com/cases/california/supreme-court/3d/39/547.html

Only if the Court establishes all applicable predicates and finds no reasonable lawful alternative should the writ command certification. Otherwise, the Court should preserve the lawful decision-making function on remand, or set the material factual questions for trial before entering merits judgment. (California Correctional Supervisors Organization, supra, 96 Cal.App.4th at p. 827.) [24]

The proposed 30-day compliance and 45-day return periods are requested judicial terms, not a claim that CHP missed the original statutory processing deadline. Petitioner requests no automatic certification for an untimely return and no finding that certification itself grants immigration status.

For those reasons, Petitioner requests judgment on Count One within the limits stated, or, if essential facts remain triable, a focused trial-setting order. He seeks neither revival of dismissed claims nor relief based on unproved contents of the agency's files.

Dated: _____

BRENDAN NGEHSI NEWANFORBI
Petitioner, in propria persona
Signature: _____

[24]California Correctional Supervisors Organization (2002) 96 Cal.App.4th 824. https://law.justia.com/cases/california/court-of-appeal/4th/96/824.html